IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI
BENCH-III

Company Petition (CAA) No.18 (ND) of 2020

(Under Section 230, 232 & 66 of the Companies Act, 2013)

&

In The Matter of Scheme of Amalgamation

Of

MIA Infrastructure Pvt. Ltd.

And

Wellkept Facility Management Services Pvt. Ltd.

And

Acme Living Solutions Pvt. Ltd.

And

TRIF Gurgaon Housing Projects Pvt. Ltd.

And

TATA Realty and Infrastructure Ltd.

In the Matter of:

Mia Infrastructure Pvt. Limited
Registered office at
E- Block, Voltas Premises,
TB Kadam Marg, Chinchpokli
Mumbai- 400033

Non Petitioner Company/Transferee Company No. 1

And

Wellkept Facility Management Services Pvt. Ltd.

Registered Office at
TB Kadam Marg,
Chinchpokli,
Mumbai- 400033

Non-Petitioner Company/Transferee Company No. 2

And

Acme Living Solutions Pvt. Ltd.
C/O Tata Services Ltd., Jeevan Bharti,
Tower-1, 10th Floor, 124, Cannaught Circus,
New Delhi- 110001

Petitioner Company No. 1/ Transferor Company No. 3

And

TRIF Gurgaon Housing Projects Pvt. Ltd.
C/O Tata Services Ltd.
Jeevan Bharti, Tower-1,
10th Floor, 124, Connaught Circus,
New Delhi-110001

Petitioner Company No. 2/ Transferor Company No. 4

With

TATA Realty and Infrastructure Ltd.
E- Block, Voltas Premises, TB Kadam Marg,
Chinchpokli, Mumbai -400033

Non-Petitioner Transferee Company

Coram:

SH. P.S.N. PRASAD, Hon'ble Member (Judicial)
SH. NARENDER KUMAR BHOLA, Hon'ble Member (Technical)

Counsel for Petitioner: Rajesh Kumar Jha

ORDER
Per SH. P.S.N. PRASAD, MEMBER (JUDICIAL)
Date:25.10.2021

1. The present Company Petition is filed under Section 230, 232 of the Companies Act, 2013 (the Act) for sanctioning of Scheme of amalgamation of transferor companies into transferee company (Scheme).
2. Ld. Counsel for the Petitioner Company submitted that in pursuance of the directions passed in the order dated 17.12.2019 passed in CA (CAA)106 (ND) of 2019, in which meetings of the equity shareholders of the transferor companies 3 & 4 are dispensed with, the meetings of the unsecured creditors of transferor companies 3 & 4 are also dispensed with as the consent affidavits of the unsecured creditors are given. There were no secured creditors in relation to transferor companies 3 & 4.
3. Thereafter, the present second motion petition has come up before us for fixing a date of hearing as well as for other consequential directions in terms of the provisions of Sections

230 to 232 of the Act read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

4. The petitioner company is hereby directed to comply following directions:

(i) The date of hearing of the Joint Petition filed by the Petitioners for the approval of the Scheme is fixed on 7th December 2021.

(ii) Notice of the hearing shall be advertised in the newspapers namely, "Business Standard" (English, Delhi edition) and "Business Standard" in Vernacular (Hindi, Delhi edition) not less than 10 days before the next date fixed for hearing.

(iii) In addition to the public notice, the Petitioner Company shall serve the notice of the Petition by all mode (Email, Speed Post etc.) on the following Authorities namely,

- *Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs at MCA, B-2 Wing, 2nd Floor, Paryavaran Bhavan, CGO Complex, New Delhi-1100 03*
- *Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs at 4th Floor, IFCI Tower, 61 Nehru place, New Delhi-110019;*
- *Income Tax Department, at DCIT (HC Cell), Lawyer's Chamber Block No.1, Room No. 428 & 429 Delhi High Court, N Delhi*

Sd-

- *Official Liquidator attached to the High Court of Delhi at Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi 110001;*
- *Such other Sectoral Regulatory Authorities who are likely to be affected by the Scheme within 7 days from the date of this order. The said authorities are directed to send their representations if any, within 30 days from the date of receipt of such notice as per the provisions of sub-section 5 of Section 230 of the Companies Act, 2013.*

(iv) Further, notices shall also be served to the objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) The Petitioner Company shall at least 7 days before the date of hearing of the Petition file an affidavit of compliance in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulators as well as to the objectors, if any.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may be filed before the date fixed for hearing, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal and subject to other conditions

being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Company shall comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Companies Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the required certificate of Company's auditor.

(viii) The next date of hearing of petition shall be on 7th December 2021 for the consideration of the approval of Scheme of Amalgamation as contemplated between the Petitioner Companies.

5. The registry is also directed to issue notices to the authorities specified in above mentioned paragraph 5 (ii)

6. Let a copy of the order be served to the parties.

-Sd-

(SH. NARENDER KUMAR BHOLA)
MEMBER (TECHNICAL)

-S-d-

(SH. P.S.N. PRASAD)
MEMBER (JUDICIAL)